Line 6

Case Name: *Michael Ramos-Mauro, et al. v. General Motors LLC, et al.*

Case No.: 25CV462049

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiffs Michael Ramos-Mauro and Michael Alexander Ramos Us ("Plaintiffs") move under Code of Civil Procedure Section 1794(d) and the accepted Release and Settlement Agreement signed on October 1, 2025 ("Settlement Agreement") for Defendant General Motors LLC ("GM" or Defendant") to pay Plaintiffs' reasonable fees, costs, and expenses as the prevailing party in this case in the amount of $15,957.94, which equals attorneys' fees sought of $15,130.00 plus costs sought of $827.94. Notice of Motion (the "Motion") at 1:24-2:13 (filed: Jan. 14, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

On January 5, 2022, Plaintiffs purchased a new 2022 Chevrolet Silverado from Stevens Creek Chevrolet. The vehicle was covered by GM's express warranty, including a three-year/36,000-mile basic warranty and a five-year/60,000-mile powertrain warranty.

Plaintiffs experienced defects and nonconformities with the vehicle, including transmission failure, failure of the vehicle to turn on, and illumination of the check engine warning light. These defects were reported to GM and authorized repair facilities, including Stevens Creek Chevrolet, for warranty repairs. Plaintiffs underwent approximately nine repair visits with a total of approximately 103 days of downtime.

Plaintiffs filed their Complaint in this court on March 26, 2025, against GM, Stevens Creek Chevrolet, and Does 1–50, bringing Song-Beverly Consumer Warranty Act claims against GM.

Defendants answered with a general denial on May 14, 2025.

The parties exchanged statutory initial disclosures and engaged in limited discovery. This case did not involve depositions, vehicle inspection, contested law-and-motion practice, expert discovery, or trial preparation.

Mediation occurred on September 5, 2025, during which GM made a settlement offer to repurchase Plaintiffs' vehicle for $27,500, and Plaintiffs accepted. A written settlement agreement was executed on October 22, 2025, providing for the $27,500 repurchase payment with attorney's fees and costs reasonably incurred by Plaintiff to be determined by noticed motion if the parties could not agree. The settlement agreement states that Defendant agrees Plaintiff is the prevailing party for purposes of this motion.

On January 14, 2026, Plaintiffs filed this Motion for Attorney's Fees against GM only, seeking attorneys' fees under Civil Code section 1794(d). Plaintiffs concurrently filed a Memorandum of Costs seeking $827.94 in costs.

GM filed its Opposition on August 21, 2026, and Plaintiffs filed a Reply on August 26, 2026.

II. Legal Standard

Civil Code Section 1794(d) provides that if the buyer prevails in an action under the Song-Beverly Consumer Warranty Act, the buyer shall recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been *reasonably* incurred by the buyer in connection with the commencement and prosecution of such action. The statute's fee-shifting provision is mandatory once prevailing-party status is established.

In determining the amount of Plaintiff's reasonable attorneys' fees, which is within its broad discretion, the Court analyzes the fees sought under the lodestar method. The Court first determines the number of hours reasonably expended on the litigation and multiplies that figure by a reasonable hourly rate. The reasonable hourly rate is the prevailing rate in the relevant community for comparable legal services, specifically here the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type. After fixing the lodestar, the court may, in its discretion, apply a positive or negative multiplier based on factors including novelty and difficulty, skill displayed, preclusion of other employment, and contingency risk, but any multiplier must rest on factors not already subsumed in the lodestar calculation.

The fee claimant bears the burden of showing the requested rates were reasonably necessary and reasonable in amount. Counsel declarations describing hours worked and tasks performed are sufficient to make a prima facie showing; once that showing is made, the opponent bears the burden of identifying specific defects in the billing with particularity. The Court must independently exclude hours that are excessive, redundant, padded, vague, or otherwise unnecessary.

III. Analysis of the Motion

A. Plaintiffs are the prevailing party entitled to recover attorneys' fees from GM under Civil Code Section 1794(d)

Because the parties stipulated to it in the settlement agreement, Plaintiffs are the prevailing-party in this Song-Beverly Act case. The settlement agreement contains GM's express acknowledgment that Plaintiffs are the prevailing party for purposes of this fee motion. Accordingly, the Court finds that this contractual acknowledgment establishes Plaintiffs' prevailing-party status here for purposes of this Motion.

B. The Motion is timely.

Plaintiffs filed the Motion on January 14, 2026, following the October 22, 2025 written settlement agreement and subsequent settlement-related proceedings. Cal. Rules of Court, rule 3.1702 requires that a fee motion be filed within the time for filing a notice of appeal, measured from entry of judgment or dismissal or service of notice of entry. The settlement date does not itself start the clock. The papers reference a January 12, 2026 declaration concerning an order to show cause regarding dismissal based on settlement, indicating the dismissal process was pending immediately before the motion was filed. Here, no final dismissal had been entered at the time of filing of the Motion, and as thee settlement agreement expressly reserved jurisdiction for the fee determination by noticed motion. Under these circumstances, the Motion is timely.

C. Analysis of Reasonableness of Hourly Rates Sought

The parties do dispute the proper hourly rates for Plaintiffs' Attorney Christopher Urner, Attorney Jorge L. Acosta, and Paralegal Mary M. Zazueta. Plaintiffs seek rates of $525/hour for Urner, $450/hour for Acosta, and $250/hour for Zazueta. GM proposes substitute rates of $350/hour for Urner, $250/hour for Acosta, and $100/hour for Zazueta, arguing that Plaintiffs failed to establish prevailing local rates for comparable noncontingent legal services and that this case was routine and settled early.

1. Governing Standard and Burden of Proof

The governing benchmark is the hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type. The relevant community is the locality where this Court sits, Santa Clara County. The fee claimant bears the burden of showing that the requested rates were reasonably necessary and reasonable in amount.

Plaintiffs' evidence demonstrates that all the cases at Plaintiffs' counsel's firm, The Lemon Pros, LLP, are accepted on a contingency basis and that the firm bills Urner's time at $525.00/hour for all contingency lemon law work. This establishes what the firm charges in contingency matters, but *not* what the local market pays for comparable noncontingent Song-Beverly or consumer-warranty litigation. The circumstance that Song-Beverly practice is commonly structured on a contingency basis does not alter the governing legal benchmark. Contingency risk and delay in payment are factors that may support a lodestar multiplier, but they may not be embedded into the base hourly rate. The Court must apply the noncontingent-market-rate benchmark.

2. Plaintiffs' Market-Rate Evidence

Plaintiffs have satisfied their burden of submitting evidence through multiple methods, even though the evidence has its limitations as the Court will now discuss.

Plaintiffs benchmarked their rates against the Laffey Matrix as adjusted for the Santa Clara locality pay differential, showing that the rates charged by the firm are below the contingency rates reflected in the Laffey Matrix as adjusted for the Santa Clara locality pay differential. So Plaintiffs argue that their rates sought are not inflated to reflect contingency risk, and do not already subsume a contingency premium

But the Laffey Matrix is not a conclusive proxy for local market rates and may be discounted where it does not reliably measure the relevant local market for comparable work. The Laffey showing as presented is a geographically derivative proxy based on adjustments to Washington D.C./Baltimore area rates. It does not directly measure the relevant Santa Clara County market for comparable noncontingent lemon-law or consumer-warranty work. So the Court gives it limited rather than dispositive weight.

Plaintiffs also referenced the Burdge United States Consumer Law Attorney Fee Survey (2017–2018), adjusted for inflation, showing average California attorney rates and 75th-percentile median rates after inflation adjustment. While the Burdge material is statewide and consumer-law oriented, it does not isolate the local market where this court sits and does not specifically establish rates for comparable noncontingent litigation in Santa Clara County. While it supports the general proposition that consumer-law rates in California can exceed the figures claimed here, it is not strong proof that the exact rates requested are the prevailing local noncontingent rates for this case.

In their reply papers, Plaintiffs identified evidence from comparable Santa Clara and San Mateo area consumer-warranty cases in which other superior court judges had previously approved similar or higher rates for these same attorneys or for other consumer-warranty counsel. These comparators were introduced for the first time in Plaintiffs' reply, without fair opportunity for GM to investigate or test them. Reply evidence first offered with the reply should be considered only with caution. The Court therefore accords these prior-ruling comparisons minimal corroborative weight. Even considered on the merits, they show only that other judges on other records approved similar or higher rates; they do not independently prove that these rates satisfy the governing noncontingent benchmark on this record.

3. Case Simplicity and Calibration of Rates

Case simplicity is not categorically confined to the hours analysis. This Court has broad discretion under California law to set a lower reasonable hourly rate where the matter is routine or straightforward and the record supports that conclusion. A reduction in requested rates after early settlement may also be upheld where supported by the record. At the same time, the court may not embed classic multiplier factors such as contingency risk, public interest, or unusual difficulty into the base hourly rate.

The record here shows that this is routine Song-Beverly case. Mediation occurred approximately five and a half months after the March 26, 2025 filing. The billing records reflect no depositions, no vehicle inspection, no contested law-and-motion practice, and no expert discovery. Settlement was reached for $27,500 on repurchase terms. These circumstances support some downward calibration of the hourly rates to reflect the routine nature of the work actually performed.

The reasonable rate may also be adjusted at the task level when higher-billing lawyers perform work that should reasonably have been delegated to lower-billing attorneys or staff, because the relevant rate is the community rate for the work actually performed. Conversely, the court cannot pick substitute rates arbitrarily; a reduction unsupported by the record is an abuse of discretion.

Taking all these facts and circumstances into account, and in the broad exercise of its discretion, the Court finds that GM's proposed reduced rates of $250/hour for Acosta, $350/hour for Urner, and $100/hour for Zazueta are unsupported by market evidence in the record and cannot simply be adopted as urged.

4. The Court's findings on Reasonable Rates for Plaintiffs' Individual Attorneys in this case.

Attorney Jorge L. Acosta: $375/hour. Plaintiffs' requested $450/hour for Acosta is not adequately supported as the prevailing local noncontingent rate. Acosta has been directly involved in the active litigation of Song-Beverly cases as a paralegal since 2018 and worked for three years at Beatty & Myers, LLP as a law clerk directly assisting in the defense litigation of hundreds of Song-Beverly cases. Acosta completed law school in 2022 and then passed the California Bar exam in 2023 and became a partner of the firm in 2024. The record shows that from the time he was admitted to the California Bar in 2023 through 2024, his hourly rate was $350/hour and his current hourly rate of $450/hour has been in effect since January 2025

Acosta's background is stronger than that of a typical second-year attorney because of his pre-admission Song-Beverly experience. But the record reflects only about two years of post-admission attorney experience during this case. On the one hand, the jump from $350/hour to $450/hour in one year is not well anchored to local noncontingent market evidence. Given the limitations in Plaintiffs' evidence and the case's routine profile, $450 is high. On the other hand, GM's proposed $250 is unsupported and too low for a lawyer with Acosta's Song-Beverly-specific experience.

Acosta performed case intake, client-agreement drafting, analysis of service records and purchase documents, pre-filing legal research including class-action research, post-filing NHTSA/TSB research, drafting of repair chronology, review of GM's document productions, review and revision of Plaintiffs' initial disclosures, drafting of mediation brief, client communications regarding settlement authority, drafting of the fee motion and supporting declaration, and attended the mediation. Legal research, mediation work, and fee-motion drafting justify an attorney rate. But intake, agreement drafting, chronology assembly, and some document review are closer to lower-level associate or paralegal work—categories that reinforce use of a reduced attorney rate rather than the full claimed $450.

Considering all these facts and circumstances, and in the broad exercise of its discretion, the Court finds that an hourly rate of **$375/hour** for attorney Acosta is reasonable in this case, accounting for both Acosta's Song-Beverly-specific experience and the routine, delegable character of portions of the work performed, and avoids arbitrary adoption of GM's proposed lower rate.

Attorney Christopher Urner: $475/hour: The requested $525/hour for Urner is supported by a materially stronger experience profile. Urner has five years (2017 to 2022) of direct litigation experience handling lemon-law cases from inception through trial with The Altman Law Group before joining The Lemon Pros, LLP. He has litigated hundreds of lemon-law cases for aggrieved consumers and has actively participated in the litigation and trial preparation of several high-profile lemon-law cases. An attorney with roughly nine years of focused lemon-law experience could reasonably command a rate above Acosta's and above many general civil litigators in this field.

The difficulty is not Urner's background; it is the work he actually performed in *this* case. The billing shows Urner performed pre-filing file review, legal analysis and drafting of memorandum, review and revision of the Complaint, review of the Civil Case Cover Sheet, and estimated future work on the opposition, reply, and hearing. Except for pre-filing legal review, that work is largely supervisory or routine. Complaint revision and cover-sheet review are not the kind of high-skill, high-complexity tasks that strongly support the top end of market rates in a simple case that settled before significant litigation activity. Review and revision of a complaint may properly involve a senior lawyer, but review of a civil cover sheet and some pre-filing memorandum work could have been handled at a lower rate or by Acosta.

Because the record does not break those entries out in a way that allows precise task-by-task repricing, a reduced overall reasonable rate for Urner better reflects both his substantial specialized experience and the routine, lightly staffed work he performed here.

Considering all these facts and circumstances, and in the broad exercise of its discretion, the Court finds that an hourly rate of **$475/hour** for attorney Urner is reasonable in this case, and avoids the arbitrary nature of GM's proposed lower rate.

Paralegal Mary M. Zazueta—$175/hour: The requested $250/hour for Zazueta is not adequately supported as the prevailing local rate for paralegal work in a straightforward Song-Beverly case. Zazueta is the lead paralegal at The Lemon Pros, LLP, with approximately seven years of experience in the legal field, including extensive experience in consumer litigation under the Song-Beverly Consumer Warranty Act. Her duties include case management, calendaring deadlines, preparing initial discovery, drafting routine legal documents, supporting attorneys throughout all phases of litigation, and training and overseeing new paralegals.

The tasks Zazueta performed here were client communications, Carfax research, review and indexing of GM's document productions, and drafting of Plaintiffs' initial disclosures and document production. Those are appropriate paralegal tasks, but they are routine paralegal tasks in a simple case. On this record, $250 is too high. But GM's proposed $100 rate is too low for an experienced consumer-litigation paralegal.

Considering all these facts and circumstances, and in the broad exercise of its discretion, the Court finds that an hourly rate of **$175/hour** for paralegal Zazueta is reasonable in this case, better reflecting both her experience and the routine nature of the work performed.

D. Analysis of Reasonableness of Number of Hours Sought

Plaintiffs claim 37.4 compensable hours following adjustment of the original estimate for fee-motion work. GM challenges both the aggregate hours and several specific time-entry categories.

1. Prima Facie Showing and Burden

Plaintiffs made the required prima facie showing through declarations that they reviewed each billing record and believe them to be an accurate record of the work completed, through the office's practice of recording time and task descriptions contemporaneously into the electronic case file, and through representation that counsel reviewed records to remove redundant billing and any non-essential clerical items. The burden therefore shifted to GM to identify specific defects with particularity.

GM's memorandum preserved entry-specific objections to ten challenged entries and to the anticipated fee-motion estimate. GM's broader assertions that many attorney entries were boilerplate, should have been done by paralegals, or that many 0.2-hour entries should have been cut appear to lean heavily on entries highlighted by defense counsel in Exhibit A of the Declaration of (defense attorney) William H. Heikkinen, rather than on developed memorandum argument. Cal. Rules of Court, rule 3.1113 requires legal argument to be made in the memorandum, not embedded in Declaration exhibits. The Court therefore gives the Heikkinen highlighting only limited weight as a record pointer and not as a substitute for developed argument. Hence, the Court addresses the specific entries GM challenged with particularity in its memorandum.

2. Prefiling and Early-Case Investigation

The prefiling and early-case investigation entries were reasonably incurred and are allowed in full.

The February 17, 2025 entry for 0.9 hours to analyze service records from the client, draft notes, and prepare the file is reasonably related to commencement of the action. Plaintiffs' record shows that before filing the Complaint, counsel performed work analyzing Plaintiffs' repair orders, speaking with Plaintiffs, and researching whether Plaintiffs' complaints may be representative of similar complaints by other model owners. Nothing about 0.9 hours for review and note preparation is facially excessive. Prefiling investigation, including repair-record review, is compensable if reasonably incurred in connection with commencing the action. And this was reasonably incurred.

The April 2, 2025 entry for 1.5 hours to review other owner complaints through NHTSA and evaluate technical service bulletins and campaigns by GM for vehicles of the same year, make, and model is likewise compensable. Plaintiffs show that this work provides TLP with an assessment of the value of Plaintiffs' claims and is particularly necessary when evaluating the veracity and completeness of discovery production by GM. GM's characterization of the case as run-of-the-mill does not undermine the specific nexus of this research to valuation and later document review. A generalized contention that a lemon-law case was simple does not itself establish that specific early-investigation entries were unreasonable.

The April 2, 2025 entry for 1.6 hours to draft a repair chronology is reasonably incurred. A repair chronology is a standard analytic tool derived from the repair history and directly tied to both pleading and case evaluation. The time claimed is not excessive on its face for assembling that chronology from the service record.

3. Same-Day Attorney Entries (March 26, 2025)

The March 26, 2025 same-day Acosta and Urner entries do not reflect impermissible duplication and are allowed in full.

Acosta billed 0.5 hours for legal research regarding possible applicable class-action lawsuits and drafting a memorandum regarding same. Urner billed 1.4 hours for review and analysis of the file and drafting a memorandum. On this record, the tasks are not the same basic task billed twice. Acosta's recorded task is specifically narrowed to possible class-action implications, while Urner's described work is broader legal-claims analysis and file review. The entries overlap in source materials, but overlap alone does not establish impermissible duplication where one attorney performs targeted research and another performs broader supervisory or strategic analysis. Same-day billing by multiple timekeepers is reducible if both billed the same basic task, but not every overlap is improper because supervision and independent analysis may add value. Any reduction for duplication must rest on a specific finding tied to the actual entries, not on assumption.

Nor is Acosta's 0.5-hour class-action research outside the nexus of this individual action. Plaintiffs' filing-stage work included researching whether Plaintiffs' claims may be representative of similar claims by other model owners, which ties that research to evaluation of this case. Given the very modest amount of time claimed and the distinct focus of the task descriptions, both the 0.5-hour Acosta entry and the 1.4-hour Urner entry are allowed in full.

4. Paralegal Production-Review Entries (July 16 and August 1)

The sequential paralegal production-review entries are allowed in full. The record shows separate entries on those same dates for two different productions: case analysis and review of GM's Initial Disclosure Document Production on July 16 and case analysis and review of GM's Protected Document Production on August 1. GM's premise that the later paralegal review covered the same materials is not established on this record. The descriptions identify different document sets on different dates, and nothing in the billing affirmatively shows overlap substantial enough to warrant a reduction. The 1.9-hour July

16 entry and the 0.9-hour August 1 entry are allowed.

5. Initial-Disclosure, Mediation-Brief, and Fee-Motion Drafting Entries

The remaining challenged merits-phase entries are reasonable in amount and are allowed in full.

Zazueta's August 4, 2025 entry for 1.7 hours to draft Plaintiffs' initial disclosures and prepare document production, together with Acosta's separate 0.8-hour entry to review and analyze the file and revise Plaintiffs' initial disclosures and document production, reflects an aggregate 2.5 hours for drafting, preparing, reviewing, and revising initial disclosures and accompanying production. This is reasonable and not excessive. The division of labor between paralegal drafting and attorney revision is appropriate.

The August 29, 2025 mediation-brief entry for 1.4 hours to review the file, repair history, and damages and draft Plaintiffs' confidential mediation brief is reasonable on its face. Its use is confirmed by the September 5, 2025 attendance at mediation. Time spent preparing and litigating the fee motion, including mediation-brief preparation, is compensable.

The January 13, 2026 fee-motion drafting entry for 1.4 hours is likewise reasonable and compensable. Fees on fees are recoverable.

6. Anticipated Fee-Motion Time

The billing statement sought four estimated future entries totaling 5.5 hours for reviewing opposition, drafting reply, preparing for hearing, and attending hearing. Urner later provided actual post-opposition time of 2.7 hours, specifically 0.3 hours to review opposition, 0.1 hours to review declaration and attachment, 1.9 hours drafting reply, 0.2 hours locating recent rulings, 0.2 hours drafting declaration, and 0.3 hours editing. Here, the Court finds that the actual 2.7 hours controls.

But that 2.7-hour actual total does not account for the separate estimated hearing-preparation and hearing-attendance components, each originally estimated at 1.0 hour. The original estimate included 1.0 hour to review the fee motion, case file, and records in preparation for hearing and 1.0 hour for attending the hearing on the fee motion. These remain facially reasonable on this record, especially where a hearing was set for September 2, 2026. The court therefore allows **4.7 hours** for fee-motion work: 2.7 actual post-opposition hours plus 2.0 estimated hours for hearing preparation and attendance.

7. Conclusion on Reasonable Number of Hours Expended

All ten challenged merits entries are allowed. The only reduction to the claimed hours is the replacement of the original 5.5-hour future estimate with 4.7 hours consisting of 2.7 actual reply-related time plus 2.0 hours for hearing preparation and attendance for this work by Urner. Hence, after considering all the papers and the record, and in the broad exercise of its discretion, the Court finds that **37.4 compensable hours** were reasonably incurred by Plaintiffs' counsel for the prosecution of this action and the fee motion.

E. The Court does not award any multiplier—positive or negative—in this routine case.

Plaintiffs request a positive 0.3 enhancement. GM requests a negative 0.3 adjustment. The Court denies both requests.

1. Fixed Lodestar Base

The lodestar must be fixed before any multiplier analysis. With the adjusted rates of $375/hour for Acosta, $475/hour for Urner, and $175/hour for Zazueta, and 37.4 compensable hours, the lodestar is calculated as follows:

Urner: 6.4 hours × $475/hour = $3,040.00

Acosta: 18 hours × $375/hour = $6,750.00

Zazueta: 13 hours × $175/hour = $2,275.00

Total lodestar: $12,065.00

3. Legal Standard for Multiplier

After the lodestar is fixed, the court may apply a positive or negative multiplier based on factors including novelty and difficulty, skill displayed, preclusion of other employment, and contingency risk. A multiplier ruling without a specified lodestar base is reversible error. Contingency risk and delay in payment are recognized grounds for an upward multiplier, and those grounds remain cognizable even where a fee-shifting statute is mandatory, although the mandatory statute reduces the force of the contingency rationale compared to an ordinary contingency matter. A positive multiplier is not automatic; the moving party must demonstrate that the lodestar does not adequately compensate for the risks or burdens of the representation, and the court must articulate its reasons for any enhancement.

California also permits a negative multiplier, but any downward adjustment must rest on a specific factor not already subsumed in the lodestar. Using the same simplicity or routine-practice concerns both to reduce hours or rates and then again to reduce the multiplier is impermissible double counting.

4. Plaintiffs' Positive-Multiplier Arguments

Plaintiffs showed that all cases at The Lemon Pros, LLP are accepted entirely on a contingency basis, that the firm fronts all costs of litigation on behalf of all legal complaints filed, and that if a case accepted is unsuccessful, the legal time and costs are not recouped. In this matter specifically, TLP agreed to represent Plaintiffs on a contingency-only basis, and if the case was not ultimately successful, the firm accepted the risk of no recovery of any fees and costs advanced. Those facts establish real exposure to nonpayment in the ordinary sense.

A mandatory fee-shifting statute reduces but does not eliminate the contingency rationale. Civil Code section 1794(d) is such a statute. On these facts, the case was comparatively streamlined. The Complaint was filed on March 26, 2025, mediation occurred on September 5, 2025, a notice of settlement was drafted on September 10, 2025, and the work reflected no entries for depositions, expert work, or trial preparation. GM's characterization that the case was run-of-the-mill, settled at mediation within approximately six months, involved no depositions, no substantive motions, no expert discovery, and no trial preparation is materially supported by the procedural record. In that setting, the contingent nature of the representation supports *at most* a reduced enhancement rationale.

Delay in payment is a distinct basis for enhancement. Plaintiffs showed that every case filed, even if successful, results in a significant delay in time of a year or more between when legal work is performed and when the reasonable fees for the work are received, and that in this case specifically counsel advanced costs and performed work from January 2025 through January 2026 before any fee payment was received or agreed upon. That approximately one-year delay is meaningful enough to be cognizable as a distinct factor. Still, delay does not automatically require an enhancement. The question is whether that delay remains uncompensated by the base rates used in the lodestar.

5. The Double-Counting Problem

That leads to the disputed double-counting question. Plaintiffs rely on the assertion that the rates charged by the firm are below the contingency rates reflected in the Laffey Matrix as adjusted for the Santa Clara locality pay differential and that the rates are therefore not inflated to reflect contingency risk and do not already subsume a contingency premium. Plaintiffs bear the burden on a positive multiplier, and this record does not persuasively resolve the dispute in Plaintiffs' favor. Showing that the rates are below a Laffey-matrix figure does not, by itself, establish that they are the prevailing noncontingent market rates for comparable Song-Beverly work in the relevant community. A rate can be below one benchmark and still include some premium over what comparable noncontingent counsel would charge.

The burden here for a positive multiplier is Plaintiffs' burden. Because the Court cannot and does not find on this record that the fixed base rates exclude a contingency or delay premium, Plaintiffs have not carried their burden to show that a further upward multiplier would not double count factors already included in the lodestar.

The Court also considers the result obtained. Plaintiffs obtained GM's settlement offer to repurchase Plaintiffs' vehicle in the amount of $27,500, and Plaintiffs accepted that offer. That outcome cannot justify a negative multiplier based on proportionality; the governing authorities forbid using the multiplier to tether fees to damages. But the favorable result also does not furnish a persuasive affirmative basis for a positive multiplier here either. The settlement was beneficial, but on this record it is the kind of successful Song-Beverly resolution the lodestar is designed to compensate. There is no showing that the result was so extraordinary, or obtained through such exceptional skill not already captured in the reasonable rates and hours, that it warrants a separate enhancement.

Accordingly, the Court finds that Plaintiffs did not carry their burden to justify an upward multiplier, and so denies to award an upward multiplier.

6. GM's Negative-Multiplier Request

GM's request for a negative 0.3 multiplier fails because it points only to factors already considered at the lodestar stage. California permits a negative multiplier, but only for a specific factor not already subsumed in the lodestar. GM identifies only the case's brevity, routine nature, lack of depositions or experts, alleged boilerplate work, and lack of unusual skill, relying on assertions that the case was run-of-the-mill, settled at mediation within approximately six months, involved no depositions, no substantive motions, no expert discovery, no trial preparation, and required no special skill, and that TLP's work relied heavily on boilerplate templates, pleadings, and discovery.

Those are classic lodestar considerations. They bear on whether the hours were reasonably necessary and whether the hourly rates should reflect routine rather than specialized work. They are not analogous to recognized factors falling outside the lodestar calculus. As the Court here has already fixed reasonable hours and reasonable rates with those simplicity concerns in view, it cannot and will not impose a further negative multiplier for the same reasons. Accordingly, GM's negative-multiplier request is denied.

F. Analysis of the Reasonable Costs and Expenses Sought Under Civil Code Section 1794(d)

Here, Plaintiffs seek costs of $827.94.

Plaintiffs are the prevailing buyers for purposes of Civil Code section 1794(d). The settlement preserved the issue of attorney's fees *and costs* reasonably incurred by Plaintiff for the Court. The $827.94 in costs sought is well supported by the verified memorandum of costs. GM waived any objection by filing no motion to tax costs, raising no line-item challenge, and expressly stating it does not contest the $827.94 memorandum.

Accordingly, the Court awards Plaintiffs **$827.94** in costs and expenses.

IV. Conclusion & Order

Accordingly, in the broad exercise of its discretion, the Courts **GRANTS Plaintiffs' Motion In Part.** Specifically, the Court **ORDERS**:

Hourly Rates: The reasonable hourly rates here $375 per hour for attorney Acosta, $475 per hour for attorney Urner, and $175 per hour for paralegal Zazueta.

Hours Expended: 37.4 hours were reasonably incurred by Plaintiffs' counsel here.

Lodestar Calculation:

Christopher Urner: 6.4 hours × $475/hour = $3,040.00

Jorge L. Acosta: 18 hours × $375/hour = $6,750.00

Mary M. Zazueta: 13 hours × $175/hour = $2,275.00

Lodestar subtotal: $12,065.00

Multiplier: The court applies no multiplier, upward or downward.

Attorney Fees Award: $12,065.00

Costs and Expenses Award: $827.94

Total Award: $12,892.94 (= $12,065.00 + $827.94).

GM shall pay this total award of **$12,892.94** to Plaintiffs within thirty days of today.

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 7

Case Name: *Erdan Liu, et al. v. El Patron Demolition, Inc.*

Case No.: 25CV467528

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Petitioners Erdan Liu and Kyle Kai Kwong, Trustees of the Erdan Liu and Kyle Kai Kwong Joint Living Trust dated December 4, 2023 ("Petitioners") move to remove the mechanics lien recorded by El Patron Demolition, Inc. ("Respondent") on the real property located at 134 Beatric Street, Mountain View, California 94303, County of Santa Clara, Assessor's Parcel No. 150-21-022 (the "Property"). Notice of Motion (the "Motion") at 1:22-2:4 (filed: Dec. 9, 2025).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background Facts & Procedural Posture

Petitioners are the owners of the Property. On or about November 27, 2024, a Mechanics Lien in the amount of $56,000 was recorded against the Property in the Official Records of Santa Clara County, Document No. 25736581, by El Patron Demolition, Inc. ('Respondent'). The recorded lien claims the sum of $56,000.00 together with interest thereon at the rate of 10.00 percent per annum from August 3, 2024, is due Respondent for excavation, hauling, and dump fees. The lien document states on its face that Respondent furnished the work and materials at the request of, or under contract with, Elk's Construction, Inc., 7576 Peach Blossom Drive, Cupertino, CA 95014.

Petitioners' counsel sent a written demand letter on May 15, 2025 via certified mail to Respondent El Patron Demolition, Inc. at its Stockton business address. The USPS eReceipt shows a First-Class Mail/Certified Mail item mailed from the 150 Sutter Street, San Francisco post office to Stockton, CA 95209, bearing Certified Mail Tracking No. 9589 0710 5270 1984 1456 09, at a total charge of $5.58, with an estimated delivery date of Saturday, May 17, 2025. The demand letter identified the lien, demanded its release, and stated multiple grounds for its release, including that lien was recorded on November 27, 2024, and the deadline to file suit expired on February 25, 2025. No such action was filed or served and lack of contractual relationship. The demand required Respondent to execute and record a Release of Mechanics Lien with the Santa Clara County Recorder's Office within 10 calendar days. After the deadline expired, Respondent failed to comply with the demand.

On June 13, 2025, Petitioners commenced this action by filing the Verified Petition